

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
RUBEN DIAZ,

Plaintiff,

-against-

Index No.: 20456/2018E
AMENDED
VERIFIED COMPLAINT

CITY OF NEW YORK, P.O. CHRISTOPHER McCABE,
P.O. MELISSA DEPAULA, P.O. PAMELA HARRIS, and
OFFICER[S] JOHN AND JAMES DOE, names presently
unknowable by Plaintiff and meant to designate additional
offending officers,

Defendants.
-----X

Plaintiff, by his attorney, **Jonathan L. Gleit, Esq.**, complaining of the Defendants,
respectfully alleges, upon information and belief, as follows:

AS AND FOR A FIRST CAUSE OF ACTION ON BEHALF OF
THE PLAINTIFF RUBEN DIAZ

1. At the time of the commencement of this action, plaintiff RUBEN DIAZ was and still is resident of the County of Bronx, City and State of New York.
2. That the causes of action alleged herein arose in the County of Bronx, City and State of New York.
3. That at all times herein mentioned Defendant CITY OF NEW YORK was, and still is, a Municipal Corporation and body politic, duly formed, organized and existing under and by virtue of the laws of the State of New York.

4. That the CITY OF NEW YORK maintains a Police Department.
5. That on and about October 29, 2016, P.O. CHRISTOPHER McCABE was employed by the CITY OF NEW YORK and THE NEW YORK POLICE DEPARTMENT.
6. That on and about October 29, 2016, at approximately 12:45 A.M., P.O. CHRISTOPHER McCABE was working and acting within the scope of his employment as a Police Officer, and under the color of law.
7. That on and about October 29, 2016 P.O. MELISSA DEPAULA was employed by the CITY OF NEW YORK and THE NEW YORK POLICE DEPARTMENT.
8. That on and about October 29, 2016 at approximately 12:45 A.M., P.O. MELISSA DEPAULA was working and acting within the scope of her employment as a Police Officer, and under the color of law.
9. That on and about October 29, 2016, P.O. PAMELA HARRIS was employed by the CITY OF NEW YORK and THE NEW YORK POLICE DEPARTMENT.
10. That on and about October 29, 2016, at approximately 12:45 A.M., P.O. PAMELA HARRIS was working and acting within the scope of her employment as a Police Officer, and under the color of law.

11. That on and about October 29, 2016 OFFICER[S] JOHN AND/OR JAMES DOE , whose names are presently unknowable to Plaintiff, were employed by the CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT.

12. That on and about October 29, 2016 at approximately 12:45 A.M., OFFICER[S] JOHN AND/OR JAMES DOE were working and acting within the scope of their employment as a Police Officer[s], and under the color of law.

13. That on or about October 29, 2016 at approximately 12:45 A.M., at or near the northeast corner of East Gun Hill Road and Putnam Avenue, Bronx, New York, the plaintiff RUBEN DIAZ was improperly arrested and confined without warrant, privilege, proper authority or justification, having no reason in law or in fact to arrest or confine RUBEN DIAZ.

14. That the defendants, their agents, servants and/or employees arrested and confined the plaintiff without any basis in law or fact and without reasonable, probable or just cause or justification or without other privilege.

15. That the defendants, their agents, servants and/or employees arrested the plaintiff without any basis in law or fact, by making false accusations against him, when they knew, or in the exercise of reasonable care, should have known they were false.

16. That the defendants, their agents, servants and/or employees unlawfully arrested, detained, imprisoned and searched the plaintiff and took his property without any basis in law or fact and without being otherwise privileged, and plaintiff being aware of his unlawful confinement was thereby caused freight, shock, emotional distress and physical consequences.

17. That the defendants P.O. CHRISTOPHER McCABE, P.O. MELISSA DEPAULA, P.O. PAMELA HARRIS and/or OFFICER[S] JOHN AND JAMES DOE, did knowingly and maliciously provide false information to the prosecutors of the criminal action against plaintiff thereby causing him to suffer an unjust prosecution initiated without probable cause that the prosecutions would succeed.

18. That defendants, their agents, servants and/or employees continued to prosecute plaintiff and threaten and deny him his freedom after they knew, or should have known, he was innocent of all charges being alleged against him.

19. That all criminal charges brought against plaintiff, which were brought under docket number 2016BX047438 in the Criminal Court of the City of New York, County of Bronx, and case number 03426-2016 in the Supreme Court of the State of New York, County of Bronx, regarding plaintiff's arrest of October 29, 2016 were dismissed on

December 5, 2018 by the Hon. Ralph Fabrizio, a Judge of said Court, and the prosecution was terminated in plaintiff's favor.

20. That by reason of the aforementioned, the Defendants actions amounted to a malicious prosecution of RUBEN DIAZ.

21. As a result of the malicious prosecution, plaintiff was deprived of his liberty and suffered the humiliation, mental anguish, indignity and frustration of an unjust criminal prosecution, and was otherwise damaged and injured and forced to defend his liberty for a period of approximately seven hundred and sixty seven days.

22. That the CITY OF NEW YORK allowed, condoned, permitted and caused a policy and procedure of repeatedly arresting innocent citizens, and engaging in a policy and procedure of arresting persons without reasonable or probable cause for nefarious, unlawful reasons, including to satisfy arrest quotas, without probable or reasonable cause, and repeatedly providing false information and testimony without reprimand to the offending officers.

23. That said illegal and unlawful arrests of innocent persons without reasonable or probable cause and conducting searches in public and while in custody when there is no reasonable basis to conduct a search are a matter of policy and record and openly acknowledged or known by the defendants, yet condoned without any reprimand of

the offending officers, referral to the District Attorney or Federal Law Enforcement officials for criminal prosecution, or even bone fide internal investigation to deter actions like those complained of herein and evidenced by the large amount of dismissals of criminal charges under similar circumstances.

24. Said policy, practice and procedure of having arrest quotas and/or productivity goals which results in the false arrests of innocent persons is exhibited, for instance, in the November 1, 2011 conviction of New York Police Department Det. Jason Arbeeny, whereat Justice Gustin Reichbach commented on the evidence presented by several witnesses that officers were expected to make certain arrest goals.

25. Additionally in the case of Floyd, et al. v. City of New York, et al., In the Southern District of New York Case 08 Civ.1034, New York City Police Officer Adhil Polanco testified in open court and under oath that the NEW YORK CITY POLICE DEPARTMENT routinely arrest primarily minority populations without a legal reason to do so, and are required or expected to do so, to satisfy arrest quotas. Said arrest quotas, euphemistically known under such terms as 'productivity goals', lead to a practice and procedure of, for instance, arresting all persons for conduct that is not criminal.

26. Additionally, Officer Craig Matthews presented evidence in federal court that he was subject to retaliation for reporting said quota system at the 40th Precinct in 2009 and Officers Pedro Serrano and Adrain Schoolcraft presented evidence in recorded form of the use of arrest quotas by the New York City Police Department.

27. Additionally, defendants as named herein have condoned, permitted and caused a policy, practice and procedure of arresting persons, almost exclusively minority persons in localities where the majority of the population are of a racial minority, under the pretense of violating Penal Laws which specify the crime of possession of things where the arrested persons do not so possess, and falsely swearing that they observed innocent persons in possession of such things, or acting in concert for the sale and possessing of things falsely for the purposes of satisfying arrest quotas.

28. Moreover, patterns of such the aforesaid conduct of arresting persons for such charges as possession of a weapon or ammunition that said persons did not, in fact possess, is demonstrated because multiple individuals have been subject to the same unjustified and fabricated charges, to wit, as a sample and small example: DUANE HENRY and SIMONE PHIPPS on July 10, 2012 and GEOFFREY ROBINSON on July 7, 2015 and ELIJAH SMITH on May 27, 2016, and a significant number of other similarly situated individuals whom defendants are necessarily aware of by virtue of the claims,

causes of action and complaints brought against defendants in both state and federal courts and through CITY OR NEW YORK agencies and departments

29. That no negligence or actions on the part of the Plaintiff contributed to the occurrences alleged herein in any manner whatsoever.

30. The herein above described actions and omissions, engaged in under the color of law by the defendants, their supervisors and commanders, including the CITY OF NEW YORK, sued as a person within the meaning of Title 42 U.S.C. 1983, et seq., by policy, procedure and act, deprived the plaintiff of rights secured to him by the Constitution and laws of the United States, including, but not limited to his First Amendment right of freedom of expression, his Fourth Amendment right to be free from unlawful seizures of his person, his Fifth Amendment rights of due process of law and to equal protection of the laws, including the right to be free from unjustified confinement utilized by the police, his Eighth Amendment right to be free from cruel and unusual punishment, and under Title 42 U.S.C. 1983, et seq.

31. That this cause of action falls within one or more of the exceptions as set forth in CPLR Section 1602.

32. That as a result of the foregoing, the plaintiff RUBEN DIAZ was damaged in a sum which exceeds the jurisdiction of all lower Courts.

AS AND FOR A SECOND CAUSE OF ACTION ON BEHALF

OF THE PLAINTIFF RUBEN DIAZ

33. That plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs enumerated 1 through 33 as though more fully set forth herein.

34. That on or about January 23, 2017, and within 90 days after the claims herein sued upon, plaintiff caused a Notice of Claim, sworn to by or on behalf of the claimant, to be presented to the defendant CITY OF NEW YORK to the offices of the defendant CITY OF NEW YORK, which said Notice of Claim set forth the name and post office address of the claimant and claimant's attorney, the nature of the claim, the time when, the place where, and the manner in which the claim arose and items of damage or injuries claimed to have been sustained, so far as then practicable.

35. At least thirty (30) days had elapsed prior to the commencement of this action since the service of such Notice of Claim as aforesaid and adjustment of payment thereof has been neglected or refused by the defendant.

36. That pursuant to a Stipulation date November 29, 2017 between Plaintiff RUBEN DIAZ and the CITY OF NEW YORK an action was commenced prior to the conducting of a General Municipal Law §50h hearing, and on March 21, 2019 Plaintiff RUBEN

DIAZ did attend and give testimony at a General Municipal Law §50h hearing in compliance with said Stipulation.

37. That this action was commenced within one year and ninety days after accrual of this cause of action, or within the time allowed by law.

38. That on or about October 29, 2016 at approximately 12:45 A.M., at or near the northeast corner of East Gun Hill Road and Putnam Avenue, Bronx, New York, the plaintiff RUBEN DIAZ was improperly arrested and confined without warrant, privilege, proper authority or justification, having no reason in law or in fact to arrest or confine RUBEN DIAZ.

39. That at all times herein mentioned, Defendants, their agents, servants and / or employees, deprived the plaintiff of Due Process under Law.

40. That the defendants, their agents, servants and /or employees arrested and confined the plaintiff without any basis in law or fact and without reasonable, probable or just cause or justification or without other privilege.

41. That the defendants, their agents, servants and /or employees arrested the plaintiff without any basis in law or fact, by making false accusations against him, when they knew, or in the exercise of reasonable care, should have known they were false.

42. That the defendants, their agents, servants and/or employees unlawfully arrested, detained, imprisoned and searched the plaintiff and took his property without any basis in law or fact or without other privilege, and plaintiff being aware of his unlawful confinement was thereby caused freight, shock, emotional distress and physical consequences.

43. That no negligence or actions on the part of the plaintiff contributed to the occurrences alleged herein in any manner whatsoever.

44. That this cause of action falls within one or more of the exceptions as set forth in CPLR Section 1602.

45. That as a result of the foregoing, the plaintiff RUBEN DIAZ was damaged in a sum which exceeds the jurisdiction of all lower Courts.

AS AND FOR A THIRD CAUSE OF ACTION ON BEHALF

OF THE PLAINTIFF RUBEN DIAZ

46. That plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs enumerated 1 through 45 as though more fully set forth herein.

47. That on or about January 22, 2019, and within 90 days after the claims herein sued upon, plaintiff caused a Notice of Claim, sworn to by or on behalf of the claimant, to be presented to the defendant CITY OF NEW YORK to the offices of the defendant

CITY OF NEW YORK, which said Notice of Claim set forth the name and post office address of the claimant and claimant's attorney, the nature of the claim, the time when, the place where, and the manner in which the claim arose and items of damage or injuries claimed to have been sustained, so far as then practicable.

48. At least thirty (30) days have elapsed prior to the commencement of this action since the service of such Notices of Claim as aforesaid and adjustment of payment thereof has been neglected or refused by the defendant.

49. On March 21, 2019 pursuant to the demand of the CITY OF NEW YORK, Plaintiff RUBEN DIAZ did attend and give testimony at a General Municipal Law §50h hearing.

50. That this action is being commenced within one year and ninety days after accrual of this cause of action, or within the time allowed by law.

51. That defendants, their agents, servants and/or employees initiated a prosecution and continued to prosecute plaintiff and deny and threaten plaintiff's freedom after they knew, or should have known, he was innocent of all charges being alleged against him.

52. That the defendants, their agents, servants and/or employees continued to prosecute the criminal action against the plaintiff due to racism and prejudice and without any basis in law or fact.

53. That the defendants P.O. CHRISTOPHER McCABE, P.O. MELISSA DEPAULA, P.O. PAMELA HARRIS and/or OFFICER[S] JOHN AND JAMES DOE, did knowingly and maliciously provide false information to the prosecutor and Grand Jury of the criminal action and falsely and/or misleadingly testified against plaintiff thereby causing him to suffer an unjust prosecution initiated and continued without probable cause that the prosecutions would succeed.

54. That all criminal charges brought against plaintiff, which were brought under docket number 2016BX047438 in the Criminal Court of the City of New York, County of Bronx, and case number 03426-2016 in the Supreme Court of the State of New York, County of Bronx, regarding plaintiff's arrest of October 29, 2016 were dismissed on December 5, 2018 by the Hon. Ralph Fabrizio, a Judge of said Court, and the prosecution was terminated in plaintiff's favor.

55. That by reason of the aforementioned, the Defendants actions amounted to a malicious prosecution of RUBEN DIAZ.

56. As a result of the malicious prosecution, plaintiff was deprived of his liberty and suffered the humiliation, mental anguish, indignity and frustration of an unjust criminal prosecution, and was otherwise damaged and injured and forced to defend his liberty for a period of approximately seven hundred and sixty seven days.

57. That this cause of action falls within one or more of the exceptions as set forth in CPLR Section 1602.

58. That as a result of the foregoing, the Plaintiff RUBEN DIAZ was damaged in a sum which exceeds the jurisdiction of all lower Courts.

AS AND FOR A FOURTH CAUSE OF ACTION ON BEHALF

OF THE PLAINTIFF RUBEN DIAZ

59. That plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs enumerated 1 through 58 as though more fully set forth herein.

60. That the defendants carelessly, recklessly and negligently failed to properly interview, hire, select, train, manage, supervise and control its employees, agents, and / or servants and negligently retained its employees, agents, and / or servants.

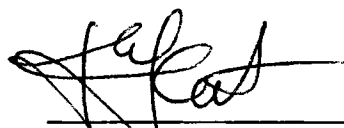
61. That the defendants carelessly, recklessly and negligently failed to properly interview, hire, select, train, manage, supervise and control its employees, agents, and / or servants and negligently retained its employees, agents, and / or servants in the proper arrests and prosecution of individuals.

62. That this cause of action falls within one or more of the exceptions as set forth in CPLR Section 1602.

63. That solely by reason of the aforesaid occurrence, and as a direct and proximate result of the defendant's negligence, Plaintiff RUBEN DIAZ was denied his freedom and rights under the federal and state constitutions and received great and severe injuries with accompanying physical and mental pain and suffering; that the plaintiff was made, still is and will continue to be sick, sore, lame and disabled and sustained other injuries, both internal and external, all of which, upon information and belief, will be permanent; that it was necessary and will be so in the future, to incur medical expenses for the care, treatment and attention of the plaintiff and for the purchase of drugs and medicines, and that plaintiff was and in the future will be prevented from attending to plaintiff's usual vocation and avocations; all to the plaintiff's damage in a sum which exceeds the jurisdiction of all lower Courts.

WHEREFORE, Plaintiff demands judgment against the Defendants on the First, Second, Third and Fourth Causes of Action inclusive of punitive damages, and attorneys fees as permitted by statute, all in sums which exceed the jurisdiction of all lower Courts, together with the costs and disbursements of this action.

Dated: Bronx, N.Y.
May 31, 2019


By: JONATHAN L. GLEIT, ESQ.
Attorney for Plaintiff

RUBEN DIAZ

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To:

CITY OF NEW YORK
CORPORATION COUNSEL
100 Church Street
4th Floor, Law Dept. , New York, New York 10007

P.O. Christopher McCabe, Shield No. 17034 [of 183] and P.O. Melissa DePaula, Shield
No 3899 [52nd Precinct] , P.O. Pamela Harris, Shield No. 09148 [BPSU]
316 Webster Ave., Bronx NY 10467

ATTORNEY'S VERIFICATION

Jonathan L. Gleit, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am the attorney of record for Plaintiff,

RUBEN DIAZ

I have read the annexed

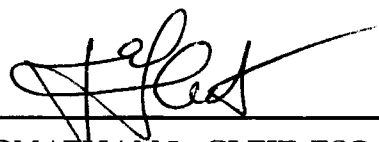
AMENDED COMPLAINT

and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files.

The reason this verification is made by myself and not Plaintiff is that Plaintiff is not presently in the county wherein the attorney for the plaintiff created this document.

DATED: Bronx, N.Y.

MAY 31, 2019

A handwritten signature in black ink, appearing to read 'J. Gleit', is written over a horizontal line.

JONATHAN L. GLEIT, ESQ.